

And lastly, for the Multitude of Attorneys, it is the Fault of them that have better learned the Art of Cavilling against the Words of a Statute, than heretofore they had, and thereby encourage themselves, and others, to undertake Suits upon little Reason. Also the Variety and Repugnancy of Judgments of Common Law do oftentimes put Men to hope for Victory in Causes, whereof in Reason they had no Ground at all. Also the Ignorance of what is Equity in their own Causes, which Equity not one Man in a thousand ever studied, and the Lawyers themselves seek not for their Judgments in their own Breast, but in the Precedents of former Judges, as the ancient Judges sought the same, not in their own Reason, but in the Laws of the Empire. Another, and perhaps the greatest Cause of Multitude of Suits, is this, that for want of registering of Conveyances of Land, which might easily be done in the Townships where the Lands lie, a Purchase cannot easily be had, which will not be litigious. Lastly, I believe the Covetousness of Lawyers was not so great in ancient Time, which was full of Trouble, as they have been since in time of Peace, wherein Men have Leisure to study Fraud, and get Employment from such Men as can encourage to Contention. And how ample a Field they have to exercise this Mystery in, is manifest from this, that they have a Power to scan and construe every Word in a Statute, Charter, Feofment, Lease, or other Deed, Evidence or Testimony. But to return to the Jurisdiction of this Court of the King's Bench, where, as you say, it hath Power to correct and amend the Errors of all other Judges, but in Process, and in Judgments; cannot the Judges of the Common Pleas correct Error in Process in their own Courts, without a Writ of Error from another Court?

*La.* Yes; and there be many Statutes which command them so to do.

*Pb.* When a Writ of Error is brought out of the King's Bench, be it either Error in Process, or in Law, at whose Charge is it to be done?

*La.* At the Charge of the Client.

*Pb.* I see no Reason for that; for the Client is not in Fault, who never begins a Suit but by the Advice of his Counsel learned in the Law, whom he pays for his Counsel given. Is not this the Fault of his Counsellor? Nor when a Judge in the Common Pleas hath given an erroneous Sentence, is it always likely that the Judge of the King's Bench will reverse the Judgment, (though there be no Question but, as you may find in *Bracton* and other learned Men, he has Power to do it) because being Professors of the same Common Law, they are persuaded, for the most Part, to give the same Judgments: For Example; if Sir *Edw. Coke* in the last Term that he sat Lord Chief Justice in the Court of Common Pleas, had given an erroneous Judgment, is it likely that when he was removed and made Lord Chief Justice of the King's Bench, he would therefore have reversed the said Judgment? It is possible he might, but not very likely. And therefore I do believe there is some other Power, by the King constituted, to reverse erroneous Judgments, both in the King's Bench, and in the Court of Common Pleas.

*La.* I think not; for there is a Statute to the contrary, made 4 *Henry 4. cap. 23.* in these Words; Whereas, as well in Plea real, as in Plea personal, after Judgment in the Court of our Lord the King, the Parties be made to come upon grievous Pain, sometimes before the King himself, sometimes before the King's Council, and sometimes to the Parliament, to answer thereof a-new, to the great impoverishing of the Parties aforesaid, and to the Subversion of the Common Law of the Land, it is ordained and established, that after Judgment given in the Court of our Lord the King, the Parties, and their Heirs, shall be there in Peace, until the Judgment be undone by Attaint or by Error, if there be Error, as hath been used by the Laws in the Times of the King's Progenitors.

*Pb.* This Statute is so far from being repugnant to that I say, as it seemeth to me to have been made expressly to confirm the same: For the Substance of the Statute is, that there shall be no Suit made by either of the Parties for any thing adjudged, either in the King's Bench, or Court of Common Pleas, before the Judgment be undone by Error, or Corruption proved; and that this was the Common